

1 **SENATE FLOOR VERSION**

2 April 22, 2025

3 ENGROSSED HOUSE
4 BILL NO. 1163

By: Gann of the House

5 and

6 Jett of the Senate

7
8
9 An Act relating to marijuana; amending 63 O.S. 2021,
10 Section 2-415, which relates to the Trafficking in
11 Illegal Drugs Act; decreasing weight amount of
12 marijuana for aggravated trafficking offense;
13 amending 63 O.S. 2021, Section 420, as amended by
14 Section 1, Chapter 182, O.S.L. 2024 (63 O.S. Supp.
15 2024, Section 420), which relates to medical
16 marijuana patient licenses; clarifying scope of
17 certain unlawful act; and providing an effective
18 date.

19 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

20 SECTION 1. AMENDATORY 63 O.S. 2021, Section 2-415, is
21 amended to read as follows:

22 Section 2-415. A. The provisions of the Trafficking in Illegal
23 Drugs Act shall apply to persons convicted of violations with
24 respect to the following substances:

- 25 1. Marijuana;
- 26 2. Cocaine or coca leaves;

3. Heroin;
4. Amphetamine or methamphetamine;
5. Lysergic acid diethylamide (LSD);
6. Phencyclidine (PCP);
7. Cocaine base, commonly known as "crack" or "rock";
8. 3,4-Methylenedioxy methamphetamine, commonly known as "ecstasy" or MDMA;
9. Morphine;
10. Oxycodone;
11. Hydrocodone;
12. Benzodiazepine; or
13. Fentanyl and its analogs and derivatives.

B. Except as otherwise authorized by the Uniform Controlled Dangerous Substances Act, it shall be unlawful for any person to:

1. Knowingly distribute, manufacture, bring into this state or possess a controlled substance specified in subsection A of this section in the quantities specified in subsection C of this section;

2. Possess any controlled substance with the intent to manufacture a controlled substance specified in subsection A of this section in quantities specified in subsection C of this section; or

3. Use or solicit the use of services of a person less than eighteen (18) years of age to distribute or manufacture a controlled dangerous substance specified in subsection A of this section in quantities specified in subsection C of this section.

1 Violation of this section shall be known as "trafficking in
2 illegal drugs". Separate types of controlled substances described
3 in subsection A of this section when possessed at the same time in
4 violation of any provision of this section shall constitute a
5 separate offense for each substance.

6 Any person who commits the conduct described in paragraph 1, 2
7 or 3 of this subsection and represents the quantity of the
8 controlled substance to be an amount described in subsection C of
9 this section shall be punished under the provisions appropriate for
10 the amount of controlled substance represented, regardless of the
11 actual amount.

12 C. In the case of a violation of the provisions of subsection B
13 of this section, involving:

14 1. Marijuana:

- 15 ~~a. twenty-five~~ Twenty-five (25) pounds or more of a
16 mixture or substance containing a detectable amount of
17 marijuana shall be ~~punishable by a fine of not less~~
18 ~~than Twenty-five Thousand Dollars (\$25,000.00) and not~~
19 ~~more than One Hundred Thousand Dollars (\$100,000.00),~~
20 ~~or~~
- 21 ~~b. one thousand (1,000) pounds or more of a mixture or~~
22 ~~substance containing a detectable amount of marijuana~~
23 ~~shall be~~ deemed aggravated trafficking punishable by a
24 fine of not less than One Hundred Thousand Dollars

1 (\$100,000.00) and not more than Five Hundred Thousand
2 Dollars (\$500,000.00);

3 2. Cocaine, coca leaves or cocaine base:

4 a. twenty-eight (28) grams or more of a mixture or
5 substance containing a detectable amount of cocaine,
6 coca leaves or cocaine base shall be punishable by a
7 fine of not less than Twenty-five Thousand Dollars
8 (\$25,000.00) and not more than One Hundred Thousand
9 Dollars (\$100,000.00),

10 b. three hundred (300) grams or more of a mixture or
11 substance containing a detectable amount of cocaine,
12 coca leaves or cocaine base shall be punishable by a
13 fine of not less than One Hundred Thousand Dollars
14 (\$100,000.00) and not more than Five Hundred Thousand
15 Dollars (\$500,000.00), or

16 c. four hundred fifty (450) grams or more of a mixture or
17 substance containing a detectable amount of cocaine,
18 coca leaves or cocaine base shall be deemed aggravated
19 trafficking punishable by a fine of not less than One
20 Hundred Thousand Dollars (\$100,000.00) and not more
21 than Five Hundred Thousand Dollars (\$500,000.00);

22 3. Heroin:

23 a. ten (10) grams or more of a mixture or substance
24 containing a detectable amount of heroin shall be

1 punishable by a fine of not less than Twenty-five
2 Thousand Dollars (\$25,000.00) and not more than Fifty
3 Thousand Dollars (\$50,000.00), or

4 b. twenty-eight (28) grams or more of a mixture or
5 substance containing a detectable amount of heroin
6 shall be deemed aggravated trafficking punishable by a
7 fine of not less than Fifty Thousand Dollars
8 (\$50,000.00) and not more than Five Hundred Thousand
9 Dollars (\$500,000.00);

10 4. Amphetamine or methamphetamine:

11 a. twenty (20) grams or more of a mixture or substance
12 containing a detectable amount of amphetamine or
13 methamphetamine shall be punishable by a fine of not
14 less than Twenty-five Thousand Dollars (\$25,000.00)
15 and not more than Two Hundred Thousand Dollars
16 (\$200,000.00),

17 b. two hundred (200) grams or more of a mixture or
18 substance containing a detectable amount of
19 amphetamine or methamphetamine shall be punishable by
20 a fine of not less than Fifty Thousand Dollars
21 (\$50,000.00) and not more than Five Hundred Thousand
22 Dollars (\$500,000.00), or

23 c. four hundred fifty (450) grams or more of a mixture or
24 substance containing a detectable amount of

1 amphetamine or methamphetamine shall be deemed
2 aggravated trafficking punishable by a fine of not
3 less than Fifty Thousand Dollars (\$50,000.00) and not
4 more than Five Hundred Thousand Dollars (\$500,000.00);

5 5. Lysergic acid diethylamide (LSD):

- 6 a. one (1) gram or more of a mixture or substance
7 containing a detectable amount of lysergic acid
8 diethylamide (LSD) shall be trafficking punishable by
9 a term of imprisonment in the custody of the
10 Department of Corrections not to exceed twenty (20)
11 years and by a fine of not less than Fifty Thousand
12 Dollars (\$50,000.00) and not more than One Hundred
13 Thousand Dollars (\$100,000.00), or
14 b. ten (10) grams or more of a mixture or substance
15 containing a detectable amount of lysergic acid
16 diethylamide (LSD) shall be aggravated trafficking
17 punishable by a term of imprisonment in the custody of
18 the Department of Corrections of not less than two (2)
19 years nor more than life and by a fine of not less
20 than One Hundred Thousand Dollars (\$100,000.00) and
21 not more than Two Hundred Fifty Thousand Dollars
22 (\$250,000.00);

23 6. Phencyclidine (PCP):
24

1 a. twenty (20) grams or more of a substance containing a
2 mixture or substance containing a detectable amount of
3 phencyclidine (PCP) shall be trafficking punishable by
4 a term of imprisonment in the custody of the
5 Department of Corrections not to exceed twenty (20)
6 years and by a fine of not less than Twenty Thousand
7 Dollars (\$20,000.00) and not more than Fifty Thousand
8 Dollars (\$50,000.00), or

9 b. one hundred fifty (150) grams or more of a substance
10 containing a mixture or substance containing a
11 detectable amount of phencyclidine (PCP) shall be
12 aggravated trafficking punishable by a term of
13 imprisonment in the custody of the Department of
14 Corrections of not less than two (2) years nor more
15 than life and by a fine of not less than Fifty
16 Thousand Dollars (\$50,000.00) and not more than Two
17 Hundred Fifty Thousand Dollars (\$250,000.00);

18 7. Methylenedioxy methamphetamine:

19 a. thirty (30) tablets or ten (10) grams of a mixture or
20 substance containing a detectable amount of 3,4-
21 Methylenedioxy methamphetamine shall be trafficking
22 punishable by a term of imprisonment in the custody of
23 the Department of Corrections not to exceed twenty
24 (20) years and by a fine of not less than Twenty-five

1 Thousand Dollars (\$25,000.00) and not more than One
2 Hundred Thousand Dollars (\$100,000.00), or
3 b. one hundred (100) tablets or thirty (30) grams of a
4 mixture or substance containing a detectable amount of
5 3,4-Methylenedioxy methamphetamine shall be deemed
6 aggravated trafficking punishable by a term of
7 imprisonment in the custody of the Department of
8 Corrections of not less than two (2) years nor more
9 than life by a fine of not less than One Hundred
10 Thousand Dollars (\$100,000.00) and not more than Five
11 Hundred Thousand Dollars (\$500,000.00);

12 8. Morphine: One thousand (1,000) grams or more of a mixture
13 containing a detectable amount of morphine shall be trafficking
14 punishable by a term of imprisonment in the custody of the
15 Department of Corrections not to exceed twenty (20) years and by a
16 fine of not less than One Hundred Thousand Dollars (\$100,000.00) and
17 not more than Five Hundred Thousand Dollars (\$500,000.00);

18 9. Oxycodone: Four hundred (400) grams or more of a mixture
19 containing a detectable amount of oxycodone shall be trafficking
20 punishable by a term of imprisonment in the custody of the
21 Department of Corrections not to exceed twenty (20) years and by a
22 fine of not less than One Hundred Thousand Dollars (\$100,000.00) and
23 not more than Five Hundred Thousand Dollars (\$500,000.00);
24

1 10. Hydrocodone: Three thousand seven hundred fifty (3,750)
2 grams or more of a mixture containing a detectable amount of
3 hydrocodone shall be trafficking punishable by a term of
4 imprisonment in the custody of the Department of Corrections not to
5 exceed twenty (20) years and by a fine of not less than One Hundred
6 Thousand Dollars (\$100,000.00) and not more than Five Hundred
7 Thousand Dollars (\$500,000.00);

8 11. Benzodiazepine: Five hundred (500) grams or more of a
9 mixture containing a detectable amount of benzodiazepine shall be
10 trafficking punishable by a term of imprisonment not to exceed
11 twenty (20) years and by a fine of not less than One Hundred
12 Thousand Dollars (\$100,000.00) and not more than Five Hundred
13 Thousand Dollars (\$500,000.00); and

14 12. Fentanyl and its analogs and derivatives:

- 15 a. one (1) gram or more of a mixture containing fentanyl
16 or carfentanil, or any fentanyl analogs or derivatives
17 shall be trafficking punishable by a term of
18 imprisonment in the custody of the Department of
19 Corrections not to exceed twenty (20) years and by a
20 fine of not less than One Hundred Thousand Dollars
21 (\$100,000.00) and not more than Two Hundred Fifty
22 Thousand Dollars (\$250,000.00), or
23 b. five (5) grams or more of a mixture containing
24 fentanyl or carfentanil, or any fentanyl analogs or

1 derivatives shall be aggravated trafficking punishable
2 by a term of imprisonment in the custody of the
3 Department of Corrections of not less than two (2)
4 years nor more than life and by a fine of not less
5 than Two Hundred Fifty Thousand Dollars (\$250,000.00)
6 and not more than Five Hundred Thousand Dollars
7 (\$500,000.00).

8 D. Any person who violates the provisions of this section with
9 respect to marijuana, cocaine, coca leaves, cocaine base, heroin,
10 amphetamine or methamphetamine in a quantity specified in paragraphs
11 1, 2, 3 and 4 of subsection C of this section shall, in addition to
12 any fines specified by this section, be punishable by a term of
13 imprisonment as follows:

14 1. For trafficking, a first violation of this section, a term
15 of imprisonment in the custody of the Department of Corrections not
16 to exceed twenty (20) years;

17 2. For trafficking, a second violation of this section, a term
18 of imprisonment in the Department of Corrections of not less than
19 four (4) years nor more than life, for which the person shall serve
20 fifty percent (50%) of the sentence before being eligible for parole
21 consideration;

22 3. For trafficking, a third or subsequent violation of this
23 section, a term of imprisonment in the custody of the Department of
24 Corrections of not less than twenty (20) years nor more than life,

1 of which the person shall serve fifty percent (50%) of the sentence
2 before being eligible for parole consideration.

3 Persons convicted of trafficking shall not be eligible for
4 earned credits or any other type of credits which have the effect of
5 reducing the length of sentence to less than fifty percent (50%) of
6 the sentence imposed; and

7 If the person is convicted of aggravated trafficking, the person
8 shall serve eighty-five percent (85%) of such sentence before being
9 eligible for parole consideration.

10 E. The penalties specified in subsections C and D of this
11 section are subject to the enhancements enumerated in subsections E
12 and F of Section 2-401 of this title.

13 F. Any person convicted of any offense described in this
14 section shall, in addition to any fine imposed, pay a special
15 assessment trauma-care fee of One Hundred Dollars (\$100.00) to be
16 deposited into the Trauma Care Assistance Revolving Fund created in
17 Section 1-2530.9 of this title and the assessment pursuant to
18 Section 2-503.2 of this title.

19 SECTION 2. AMENDATORY 63 O.S. 2021, Section 420, as
20 amended by Section 1, Chapter 182, O.S.L. 2024 (63 O.S. Supp. 2024,
21 Section 420), is amended to read as follows:

22 Section 420. A. A person in possession of a state-issued
23 medical marijuana patient license shall be able to:

24 1. Consume marijuana legally;

1 2. Legally possess up to three (3) ounces or eighty-four and
2 nine-tenths (84.9) grams of marijuana on their person;

3 3. Legally possess six mature marijuana plants and the
4 harvested marijuana therefrom;

5 4. Legally possess six seedling plants;

6 5. Legally possess one (1) ounce or twenty-eight and three
7 tenths (28.3) grams of concentrated marijuana;

8 6. Legally possess seventy-two (72) ounces or two thousand
9 thirty-seven and six-tenths (2037.6) grams of edible marijuana;

10 7. Legally possess up to eight (8) ounces or two hundred
11 twenty-six and four-tenths (226.4) grams of marijuana in their
12 residence; and

13 8. Legally possess seventy-two (72) ounces of topical
14 marijuana.

15 B. Possession of up to one and one-half (1.5) ounces or forty-
16 two and forty-five one-hundredths (42.45) grams of marijuana by
17 persons who can state a medical condition at the time of the stop
18 and issuance of a written citation or arrest, but are not in
19 possession of a state-issued medical marijuana patient license,
20 shall constitute a misdemeanor offense punishable by a fine not to
21 exceed Four Hundred Dollars (\$400.00) and shall not be subject to
22 imprisonment for the offense. Any law enforcement officer who comes
23 in contact with a person in violation of this subsection and who is
24 satisfied as to the identity of the person, as well as any other

1 pertinent information the law enforcement officer deems necessary,
2 shall issue to the person a written citation containing a notice to
3 answer the charge against the person in the appropriate court. Upon
4 receiving the written promise of the alleged violator to answer as
5 specified in the citation, the law enforcement officer shall release
6 the person upon personal recognizance unless there has been a
7 violation of another provision of law.

8 C. The Oklahoma Medical Marijuana Authority shall be
9 established which shall receive applications for medical marijuana
10 patient and caregiver license recipients, dispensaries, growers, and
11 processors within sixty (60) days of the passage of this initiative.

12 D. The Authority shall, within thirty (30) days of passage of
13 this initiative, make available on its website, in an easy-to-find
14 location, an application for a medical marijuana patient license.
15 The license shall be valid for two (2) years. The biannual
16 application fee shall be One Hundred Dollars (\$100.00), or Twenty
17 Dollars (\$20.00) for individuals on Medicaid, Medicare or
18 SoonerCare. The methods of payment shall be provided on the website
19 of the Authority. Reprints of the medical marijuana patient license
20 shall be Twenty Dollars (\$20.00).

21 E. A short-term medical marijuana patient license application
22 shall also be made available on the website of the Authority. A
23 short-term medical marijuana patient license shall be granted to any
24 applicant who can meet the requirements for a two-year medical

1 marijuana patient license, but whose physician recommendation for
2 medical marijuana is only valid for sixty (60) days. Short-term
3 medical marijuana patient licenses shall be issued for sixty (60)
4 days. The fee for a short-term medical marijuana patient license,
5 reprints of the short-term medical marijuana patient license, and
6 the procedure for extending or renewing the license shall be
7 determined by the Executive Director of the Authority.

8 F. A temporary medical marijuana patient license application
9 shall also be made available on the website of the Authority for
10 residents of other states. Temporary medical marijuana patient
11 licenses shall be granted to any medical marijuana license holders
12 from other states, provided that such states have state-regulated
13 medical marijuana programs, and applicants can prove they are
14 members of such programs. Temporary medical marijuana patient
15 licenses shall be issued for thirty (30) days. The cost for a
16 temporary license shall be One Hundred Dollars (\$100.00). Renewal
17 shall be granted with resubmission of a new application. No
18 additional criteria shall be required. Reprints of the temporary
19 medical marijuana patient license shall be Twenty Dollars (\$20.00).

20 G. Medical marijuana patient license applicants shall submit
21 their applications to the Authority for approval. The applicant
22 shall be a resident of this state and shall prove residency by a
23 valid driver license, utility bills, or other accepted methods.

24

1 H. The Authority shall review the medical marijuana patient
2 license application; approve, reject, or deny the application; and
3 mail the approval, rejection, or denial letter stating any reasons
4 for rejection, to the applicant within fourteen (14) business days
5 of receipt of the application. Approved applicants shall be issued
6 a medical marijuana patient license which shall act as proof of his
7 or her approved status. Applications may only be rejected or denied
8 based on the applicant not meeting stated criteria or improper
9 completion of the application.

10 I. The Authority shall make available, both on its website and
11 through a telephone verification system, an easy method to validate
12 the authenticity of the medical marijuana patient license by the
13 unique twenty-four-character identification number.

14 J. The Authority shall ensure that all medical marijuana
15 patient and caregiver records and information are sealed to protect
16 the privacy of medical marijuana patient license applicants.

17 K. A caregiver license shall be made available for qualified
18 caregivers of a medical marijuana patient license holder who is
19 homebound. As provided in Section 427.11 of this title, the
20 caregiver license shall provide the caregiver the same rights as the
21 medical marijuana patient licensee including the ability to possess
22 marijuana, marijuana products and mature and immature plants or
23 cultivated medical marijuana pursuant to the Oklahoma Medical
24 Marijuana and Patient Protection Act, but excluding the ability to

1 use marijuana or marijuana products unless the caregiver has a
2 medical marijuana patient license. Applicants for a caregiver
3 license shall submit proof of the license status and homebound
4 status of the medical marijuana patient and proof that the applicant
5 is the designee of the medical marijuana patient. The applicant
6 shall also submit proof that he or she is eighteen (18) years of age
7 or older and proof of his or her state residency. This shall be the
8 only criteria for a caregiver license. A licensed caregiver shall
9 not cultivate medical marijuana for more than five medical marijuana
10 patient licensees and shall not charge a medical marijuana patient
11 licensee for cultivating medical marijuana in excess of the actual
12 costs incurred in cultivating the medical marijuana.

13 L. All applicants for a medical marijuana patient license shall
14 be eighteen (18) years of age or older. A special exception shall
15 be granted to an applicant under the age of eighteen (18); however,
16 these applications shall be signed by two physicians and the parent
17 or legal guardian of the applicant.

18 M. All applications for a medical marijuana patient license
19 shall be signed by an Oklahoma physician licensed by and in good
20 standing with the State Board of Medical Licensure and Supervision,
21 the State Board of Osteopathic Examiners, or the Board of Podiatric
22 Medical Examiners. There are no qualifying conditions. A medical
23 marijuana patient license shall be recommended according to the
24 accepted standards a reasonable and prudent physician would follow

1 when recommending or approving any medication. No physician may be
2 unduly stigmatized, penalized, subjected to discipline, sanctioned,
3 reprimanded or harassed for signing a medical marijuana patient
4 license application; provided, the physician acted in accordance
5 with the provisions of this subsection and all other rules governing
6 the medical license of the physician in this state.

7 N. Counties and cities may enact medical marijuana guidelines
8 allowing medical marijuana patient license holders or caregiver
9 license holders to exceed the state limits set forth in subsection A
10 of this section.

11 SECTION 3. This act shall become effective November 1, 2025.

12 COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
13 April 22, 2025 - DO PASS
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